



CHAPTER xliii.

An Act to confer further powers upon the Ferndale Gas Company Limited and for other purposes. A.D. 1916.

[3rd August 1916.]

WHEREAS the Ferndale Gas Company Limited (in this Act referred to as “the Company”) are a Company incorporated under the Acts repealed by the Companies (Consolidation) Act 1908 for the purposes (amongst other things) of making and vending in the town and district of Ferndale in the county of Glamorgan gas and coke and other matters employed in or resulting from the manufacture of gas and for lighting the said town and district with gas:

And whereas by the Ferndale Gas Order 1883 confirmed by the Gas and Water Orders Confirmation Act 1883 (hereinafter referred to as “the Order of 1883”) the Company were authorised to maintain and continue gasworks upon the lands described in the schedule to that Order and powers were conferred upon the Company in relation to the supply of gas within so much of the Rhondda Fach Valley in the several parishes of Ystradyfodwg Llanwonno and Aberdare all in the county of Glamorgan as is situate northward of an imaginary line drawn along the centre of Pontygwaith Bridge carrying the parish road over the River Rhondda Fach and extending thence eastward and westward across the Rhondda Fach Valley: 46 & 47 Vict.
c. xlv.

And whereas it was provided by the Order of 1883 that the share capital of the Company should consist of the original share capital of ten thousand pounds and of additional share capital not exceeding ten thousand pounds and that the original and additional share capital should not exceed twenty thousand pounds unless the Company were thereafter authorised to raise further additional share capital by Provisional Order under

A.D. 1916. the Gas and Water Works Facilities Act 1870 or by Act of Parliament :

And whereas it was provided by the Order of 1883 that the amount of all moneys borrowed by the Company and secured by mortgage of their gas undertaking should not at any time exceed in the whole five thousand pounds :

And whereas the whole of the share capital authorised by the Order of 1883 has been raised and issued and premiums in respect of the issue of the additional share capital have been received amounting to one thousand two hundred and fifty-nine pounds fifteen shillings and sixpence the original capital of ten thousand pounds being entitled to a standard dividend of ten pounds per centum per annum and the additional capital being entitled to a standard dividend of seven pounds per centum per annum subject in each case to an increase or decrease of five shillings per centum per annum for every penny or part of a penny per thousand cubic feet charged in excess or in diminution of the standard price of gas thereby authorised :

And whereas the Company have raised the sum of five thousand pounds by the issue of debentures in conformity with the Order of 1883 and have also borrowed sums amounting in the whole to eleven thousand four hundred pounds otherwise than on mortgage of their undertaking the same being secured in part by guarantees given by the directors and in part by promissory notes and which said sums have been expended on the extension and improvement of the undertaking :

And whereas the Company have caused a structural valuation to be made of the lands and of the works of manufacture storage and distribution erected thereon and of the mains meters stoves and services as fixed belonging to the Company which valuation amounts to the sum of thirty-three thousand eight hundred and sixty pounds :

And whereas the sums expended upon the undertaking of the Company including the sums represented by the said loans of eleven thousand four hundred pounds amount to the sum of thirty-seven thousand six hundred and sixty pounds and it is expedient that the Company should be empowered to redeem and cancel the unproductive capital amounting to three thousand eight hundred pounds as in this Act provided :

And whereas the demand for gas within the Company's limits of supply has increased and is increasing and it is expedient to empower them to raise additional capital for the extension

and improvement of their undertaking and to enable them to pay off the said loans of eleven thousand four hundred pounds and to confer upon them the further powers in regard to the supply of gas contained in this Act: A.D. 1916.

And whereas the Company under the powers of the Order of 1883 have acquired certain leasehold lands in the neighbourhood of the lands described in the schedule to the Order of 1883 and have erected thereon a gas-holder and other works which have been used for the storage of gas since the year one thousand eight hundred and ninety-six and it is expedient to empower the Company to store gas on the said lands and certain adjoining lands proposed to be used for that purpose:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Ferndale Gas Act 1916 and the Ferndale Gas Order 1883 and this Act may be cited together as the Ferndale Gas Order and Act 1883 and 1916. Short and collective titles.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (that is to say):— Incorporation of general Acts.

(A) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement):

(B) The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) as amended by the Gasworks Clauses Act 1871 Provided that—

(a) Section 13 of the Gasworks Clauses Act 1847 shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every “such contract entered into by the Company shall “be alike in terms and amount under like

A.D. 1916.
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“ circumstances to all consumers ” were added at the end of that section ;

(b) Section 35 of the same Act in its application to the Company shall be read as if the words from “ in case the whole ” down to “ have been paid ” were omitted therefrom and as if the expression “ the prescribed rate ” included the standard rate of dividend or such rate as reduced or increased in accordance with the provisions of the Order of 1883 together with any sum which under the provisions of this Act may be carried to the special purposes fund.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

The expression “ the Company ” means the Ferndale Gas Company Limited ;

The expression “ the Order of 1883 ” means the Ferndale Gas Order 1883 scheduled to and confirmed by the Gas and Water Orders Confirmation Act 1883 ;

The expression “ limits of supply ” means the limits within which the Company are for the time being authorised to supply gas ;

The expression “ the undertaking ” means the undertaking of the Company for the supply of gas as authorised by the Order of 1883 and this Act ;

The expression “ calorific power ” means the total heat value expressed in British thermal units ;

The expression “ British thermal units ” means British thermal units gross per cubic foot of gas ;

The expression “ additional capital ” means the further share capital which the Company may raise under the provisions of this Act.

FINANCIAL.

Additional
capital.

4. The limitation prescribed by the Order of 1883 with respect to the share capital of the Company for the purposes

of their undertaking shall not prevent the Company from raising for such purposes further share capital not exceeding twenty-five thousand seven hundred and fifty pounds Provided that—

A.D. 1916.

(1) The share capital of the Company for the purposes of the undertaking authorised by the Order of 1883 and this Act shall not exceed in the whole the sum of forty-seven thousand and ten pounds unless the Company are hereafter authorised to raise further capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament:

(2) It shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty-five thousand seven hundred and fifty pounds.

5.—(1) Except as provided by section 25 (Fixing maximum price of gas with sliding scale as to dividend) of the Order of 1883 the Company shall not in any year declare out of their profits any larger dividends on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as is issued as ordinary capital and the Company shall not attach to any part of the additional capital as shall be issued as preference capital a greater rate of dividend than six pounds in respect of every one hundred pounds actually paid up of such capital.

Limit of dividend on capital.

(2) Section 25 (Fixing maximum price of gas with sliding scale as to dividend) of the Order of 1883 in its application to so much of the additional capital as is issued as ordinary capital shall be read and have effect as though the words “three shillings and sixpence” had been inserted therein instead of the words “five shillings.”

6. In case in any year or in any half year (if the Company declare a dividend half-yearly) the net revenues of the Company applicable to dividends are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Company a proportionate deduction shall be made in the dividend of each class.

Dividends on different classes of ordinary shares or stock to be paid proportionately.

7.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

New shares or stock to be sold by auction or tender.

A.D. 1916.

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(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:--

(A) Notice of the intended sale shall be given in writing to the clerk of every district council any part of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the receipt of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum:

(E) In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(F) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in manner prescribed by a resolution passed by the directors of the Company and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the said directors may think

fit or to one or more of those classes of persons only Provided A.D. 1916.
in the case of an offer to holders of shares or stock that if the
aggregate amount of shares or stock applied for shall exceed
the aggregate amount so offered as aforesaid the same shall be
allotted to and distributed amongst the applicants as nearly as
may be in proportion to the amounts applied for by them
respectively.

(4) Any shares or stock which have been offered for sale
in accordance with subsection (2) or with subsections (2) and (3)
of this section and are not sold may be again offered for sale
by public auction or by tender in accordance with the provisions
of this section and any such shares or stock then remaining
unsold may be otherwise disposed of at such price and in such
manner as the directors may determine for the purpose of
realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or
sales the Company shall send a report thereof to the Board of
Trade stating the total amount of the respective shares or stock
sold the total amount obtained as premium (if any) and the
highest and lowest prices obtained for the respective shares or
stock.

(6) Nothing in this section contained shall prevent the
Company issuing preference shares or stock to a nominal
amount not exceeding nineteen thousand pounds and at a price
not less than the nominal amount of such shares or stock to
any creditor of the Company in satisfaction of any debt due or
to become due to him from the Company under any contract
in existence on the fifteenth day of January one thousand nine
hundred and sixteen and properly chargeable to capital account.

8. Notwithstanding anything contained in the Order of Limit of
1883 the Company may borrow money on mortgage upon the borrowing
security of their undertaking but the total amount of moneys powers.
so borrowed shall not at any time exceed in the whole one-third
of the total amount of the share capital of the Company at the
time actually raised by the issue of shares or stock including
any premium obtained on the sale of any shares or stock under
the provisions of the Order of 1883 or this Act.

9. All money raised under this Act including any premium Application
shall be applied only to the discharge of the recited loans of of money.
eleven thousand four hundred pounds or to purposes to which
capital is properly applicable and any sum of money which may

A.D. 1916. — arise from the issue of any shares or stock under the provisions of this Act by way of premium shall not be considered as part of the capital of the Company entitled to dividend but all such sums shall be considered as part of the paid-up capital of the Company for the purpose of determining their powers to raise money by borrowing or the amount which they may carry to the special purposes fund.

Capital
redemption
fund.

10.—(1) In any year after the year one thousand nine hundred and fifteen in which the divisible profits of the Company shall exceed the amount required to pay the dividends on the preference capital the Company shall transfer to a fund to be called “the capital redemption fund” the balance of such divisible profits remaining after paying the said dividends up to the sum of two hundred pounds per annum. Provided that as soon as the Company have transferred to the fund sums amounting in the aggregate to three thousand eight hundred pounds this subsection shall cease to operate and have effect.

(2) Every sum so transferred shall be applied by the Company as soon as reasonably possible to the purchase of ordinary or preference shares or stock in the capital of the Company.

(3) Shares or stock so purchased shall forthwith be cancelled and extinguished for all purposes whatsoever and thereupon the Company shall duly make an entry in their books to that effect.

(4) Except in the open market the Company shall not purchase any shares or stock at a price exceeding the price at which according to the records of the Company the last transaction in shares or stock of the same class took place and as soon as possible after each purchase under this section the Company shall inform the clerk of the Rhondda Urban District Council of the amount of each class of shares or stock purchased and the price paid therefor.

Special pur-
poses fund.

11.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.”

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

A.D. 1916.

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The money forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The moneys or securities (if any) standing to the credit of the depreciation fund of the Company at the passing of this Act shall be credited to the special purposes fund.

12. If in any year the clear profits of the undertaking (after appropriating and setting apart such sum or sums (if any) as may be determined upon under the powers of the Order of 1883 and this Act to any fund or funds thereby authorised) amount to a larger sum than is sufficient to pay the dividends on the preference capital and the dividends at the prescribed rates on the ordinary capital of the Company the excess shall subject to the provisions of the section of this Act of which the marginal note is "Capital redemption fund" be carried to the credit of the profit and loss (net revenue) account of the undertaking for the next following year:

Application
of excess of
profits.

Provided that after allowing for the payment of such dividends the sum standing to the credit of such profit and loss (net revenue) account to be carried forward to the next following year shall not at any time exceed the amount required to pay one year's dividend on the preference capital and one year's dividend at the prescribed rates on the ordinary capital.

A.D. 1916.

Restriction
on raising
money during
present war.

13. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money except for the payment of the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" or issue any shares or stock under the provisions of subsection (6) of the section of this Act whereof the marginal note is "New shares or stock to be sold by auction or tender" during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

WORKS AND LANDS.

Lands for
storage of
gas.

14. The Company may upon the lands described in the First Schedule to this Act construct make maintain alter enlarge and use or discontinue gas-holders and other works for the storage of gas and may store gas on such lands accordingly.

Power to
purchase
lands by
agreement.

15. Notwithstanding anything contained in the Order of 1883 the Company may for the purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and may hold in addition to the lands described in the schedule to the Order of 1883 and the First Schedule to this Act and in addition to the lands which the Company may acquire under the Order of 1883 any lands and hereditaments not exceeding in the whole five acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to the Order of 1883.

Power to
sell and
lease lands.

16. The Company may sell and dispose of or may let on lease for such periods as they think fit any lands acquired by them by agreement and for the time being belonging to them and not at the time required for the purposes of the undertaking and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations and conditions and generally upon such terms and conditions as the Company think fit and notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to the lands sold or disposed of by the Company under the powers of this section.

17. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Order of 1883 and this Act:

A.D. 1916.

Power to
lay pipes in
streets not
dedicated to
public use.

Provided that in respect of any such street which is situate within the Rhondda Urban District the urban district council of such district shall be deemed in addition to any other persons to be persons having the control or management of such street for the purposes of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

18. The Company may lay down and repair take up alter or relay or renew mains pipes and culverts within a radius of three hundred yards from any lands on which the Company are authorised to manufacture gas for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
pipes &c. for
ancillary
purposes.

CALORIFIC POWER AND TESTING OF GAS.

19. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing-place shall be the testing-place provided in pursuance of section 26 (Testing of gas) of the Order of 1883 or a new testing-place to be provided by the Company in lieu thereof on some part of the lands described in the schedule to the Order of 1883 or the First Schedule to this Act.

Testing-
place.

20.—(1) Within six months from the passing of this Act the Company shall provide at the prescribed testing-place apparatus for testing the calorific power of the gas supplied by them at such testing-place similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing

Testing for
calorific
power.

A.D. 1916. the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905.

(2) As from the date on which the Company shall have completed the provision of the apparatus for testing the calorific power the calorific power of the gas supplied by the Company shall be five hundred British thermal units and that power is in this Act referred to as "the standard calorific power."

(3) As from such date the provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Company and sections 28 to 31 and 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

Provisions
as to testing.

21.—(1) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

(2) The Company shall be entitled on each occasion of the testing of gas under the provisions of this section to be represented by some officer who shall not interfere in the testing.

(3) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

Penalties for
deficient
calorific
power.

22. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):—

Where the deficiency does not exceed fourteen British thermal units forty shillings:

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

Pressure of
gas.

23. As from the first day of January one thousand nine hundred and seventeen section 25 (Pressure of gas) of the Order

of 1883 shall be repealed and all gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer Subject to the terms of his appointment any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act either at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied and the Company shall afford to the examiner all reasonable facilities for making any such test. A.D. 1916.

24. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner reports or it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to penalties.

25.—(1) The Company shall at any time within two years after the first day of January one thousand nine hundred and seventeen if and when required by any consumer of gas supplied by the Company (other than a consumer by prepayment meter) supply to him and fix free of charge a sufficient number of flat-flame burners suitable in all respects for the consumption of gas of the calorific power prescribed by this Act in substitution for the flat-flame burners in use by him before the said first day of January. Suitable burners to be provided in lieu of those now in use.

(2) The Company shall also as soon as reasonably practicable after the said first day of January one thousand nine hundred and seventeen and at the latest within a period of three months thereafter exchange the flat-flame burners used by consumers of gas supplied by the Company by means of prepayment meters for flat-flame burners similarly suitable for the consumption of gas of the calorific power prescribed by this Act.

(3) Notice of the provisions of this section shall be given on each demand note of the Company sent out during the first-mentioned period of two years.

SUPPLY OF GAS.

26. On and from the first day of January one thousand nine hundred and seventeen section 25 (Fixing maximum price of gas). Maximum price of gas.

A.D. 1916. of gas with sliding scale as to dividend) of the Order of 1883 shall be read and have effect as though the words "five shillings" had been inserted therein in lieu of the words "six shillings and tenpence."

Power to vary price according to purpose for which gas is supplied.

27. Notwithstanding anything contained in this or any other Act relating to the Company the price to be charged by the Company for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

Minimum charge for gas laid on to premises having a supply of electricity or power gas.

28. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Charge for gas supplied by means of prepayment meters.

29.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner

aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking-stove or in either of such cases at the rate of ten per centum per annum on the cost of the meter and fittings whichever shall be the higher. A.D. 1916.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

30. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer

A.D. 1916.
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between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Gas consumers to give notice to Company before removing.

31. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever date shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

32. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the sufficiency of the gas required to be supplied by means of such main for lighting purposes.

A.D. 1916.

Amending
obligations
as to supply
of gas.

33. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Company
may refuse
to supply gas
in certain
cases.

34. The power to enter premises and to remove pipes meters fittings or apparatus conferred on the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to en-
ter premises
and remove
fittings.

35.—(1) In any case in which the Company are by virtue of any enactment relating to their undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847.

As to mode
of cutting off
supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks

A.D. 1916. Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

Occupier to pay expenses of reconnecting disconnected supply.

36. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Fittings not to be subject to distress and though fixed to premises to remain property of Company.

37.—(1) Any fittings tubes meters pipes stoves ranges engines and machines and other apparatus and appliances (in this section referred to as “fittings”) let for hire by the Company under the provisions of section 21 (Power to make gas meters &c.) of the Order of 1883 shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be.

(2) Any fittings let for hire by the Company as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Period of error in defective meters.

38. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of

the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

A.D. 1916.

39. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer.

Anti-fluctuators for gas engines.

40. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

Company may enter into contracts for supply of gas.

41. The Company may enter into and fulfil any contract or arrangement with any county urban rural or local authority having powers within any part of the limits of supply for the supply of gas by the Company for public purposes for any period not exceeding under any one such contract or arrangement seven years:

Contracts for supplying gas for public purposes.

Provided that such supply shall not be given for use beyond the limits of supply except with the consent of any company or person supplying gas under parliamentary authority

A.D. 1916. — within the area within which the supply is to be used and nothing in this section shall authorise the Company to lay mains or other pipes beyond the limits of supply.

Notice to
discontinue
supply of
gas.

42. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

MISCELLANEOUS.

Dwelling-
houses for
Company's
employees
offices show-
rooms &c.

43. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Several sums
in one sum-
mons.

44. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued for the purposes of this Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Authentica-
tion and
service of
notices by
Company.

45. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

46. Penalties imposed on the Company for one and the same offence by several Acts of Parliament shall not be cumulative and for such purpose this Act and the Acts incorporated herewith shall be deemed several Acts.

A.D. 1916.
Penalties
not cumula-
tive.

47. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

48. Proceedings for the recovery of any demand made under the authority of this Act or the Order of 1883 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

49. The sections of the Order of 1883 of which the numbers and marginal notes are set forth in the first and second columns of the Second Schedule to this Act shall as from the respective dates mentioned in the fourth column of the said schedule be by virtue of this Act repealed to the extent mentioned in the third column of that schedule.

Repeal of
certain sec-
tions of
Order of
1883.

50. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty Every penalty under this section shall be recoverable summarily.

Copy of Act
to be regis-
tered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be

A.D. 1916. — sent to the registrar by the liquidator in a winding-up in England.

Saving as
to general
Acts.

51. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of Act.

52. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act.

A.D. 1916.

FIRST SCHEDULE.

LANDS FOR STORAGE OF GAS.

All that piece or parcel of land in the parish of Rhondda (formerly the parish of Ystradyfodwg) in the county of Glamorgan containing in the whole two thousand four hundred and eighty-one square yards or thereabouts situate on the western side of the River Rhondda Fach and to the north-west of the land described in the schedule to the Order of 1883 on which the existing gasworks of the Company are situate and bounded on or towards the north by a school-house and certain garden ground belonging or reputed to belong to the Rhondda Urban District Council on or towards the west and south-west in part by certain waste land belonging or reputed to belong to D. Davis and Sons Limited and in part by a roadway leading from Station Road to the Company's gasworks and on or towards the east by the said River Rhondda Fach.

SECOND SCHEDULE.

SECTIONS OF THE ORDER OF 1883 REPEALED AS FROM THE PASSING OF THE FOREGOING ACT.

Section.	Marginal Note.	Extent of Repeal.	Date of Repeal.
1.	2.	3.	4.
14	(Limit of borrowing powers.)	The words ("and no higher " rate of interest than five " pounds per centum per " annum shall be paid by " the undertakers without " the consent of the Board " of Trade in respect of " any moneys borrowed " by the undertakers after " the passing of the Act " confirming this Order " and secured as afore- " said").	The passing of this Act.

A.D. 1916.

Section. 1.	Marginal Note. 2.	Extent of Repeal. 3.	Date of Repeal. 4.
15	(If profits exceed the amount limited excess may be invested and form an insurance fund.)	The whole section - -	The passing of this Act.
16	(Application of excess of profits over prescribed rates.)	The whole section - -	The passing of this Act.
24	(Quality of gas) -	The whole section - -	Six months after the passing of this Act.
26	(Testing of gas) -	The whole section - -	Six months after the passing of this Act.
27	(No penalty in case of unavoidable cause.)	The whole section - -	Six months after the passing of this Act.

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